Mom's Simple Will — Pre-Filled Draft

A Last Will and Testament for a straightforward situation: everything split 50/50 between two adult children.

This is tailored to Mom's wishes as expressed. Only a few personal details need filling in (marked **[LIKE THIS]**). Highlighted in the checklist below.

LAST WILL AND TESTAMENT

OF [MOM'S FULL LEGAL NAME]

I, **[MOM'S FULL LEGAL NAME]** , residing at **[STREET ADDRESS]** , **[CITY]** , **[COUNTY]** , **[STATE]** , being of sound mind and memory, and not acting under duress or undue influence, do hereby make, publish, and declare this to be my Last Will and Testament, hereby revoking all prior wills and codicils made by me.

ARTICLE I — FAMILY

I have two children, both of whom are living and are adults:

1. **[CHILD 1 FULL LEGAL NAME]** , born **[DATE OF BIRTH]**
2. **[CHILD 2 FULL LEGAL NAME]** , born **[DATE OF BIRTH]**

All references in this Will to "my children" refer to the two individuals named above.

ARTICLE II — PAYMENT OF DEBTS, EXPENSES, AND TAXES

I direct my Executor to pay from my estate, as soon as practicable after my death:

1. My legally enforceable debts
2. The expenses of my last illness and funeral
3. The costs of administering my estate
4. Any estate or inheritance taxes owed

ARTICLE III — ASSETS WITH NAMED BENEFICIARIES

I acknowledge that certain of my assets — including but not limited to bank accounts, investment accounts, retirement accounts, and life insurance policies — may have beneficiary designations on file with the relevant institutions. **Those assets shall pass according to those beneficiary designations and are NOT controlled by this Will.** This Will governs only assets that do not have valid beneficiary designations.

ARTICLE IV — RESIDUARY ESTATE (THE MAIN GIFT)

I give, devise, and bequeath all the rest, residue, and remainder of my estate, of every kind and nature and wherever situated — including all real property, personal property, household goods, vehicles, cash, and any other assets not otherwise effectively disposed of — **in equal shares, fifty percent (50%) each, to my two children**, namely:

- **[CHILD 1 FULL LEGAL NAME]** — 50%
- **[CHILD 2 FULL LEGAL NAME]** — 50%

If one of my children predeceases me (dies before me), that child's share shall pass:

- [ ] *Option A:* to that child's descendants (my grandchildren), per stirpes (meaning divided equally among their children)
- [ ] *Option B:* to my surviving child
- [ ] *Option C:* **[OTHER - SPECIFY]**

(Mom: pick one option above. Option A is most common.)

ARTICLE V — EXECUTOR

I appoint **[PRIMARY EXECUTOR NAME — often one of the kids]** to serve as Executor (Personal Representative) of my estate.

If that person is unable or unwilling to serve, I appoint **[ALTERNATE EXECUTOR NAME]** to serve as Executor.

My Executor:

- Shall serve **without bond** (or with the minimum bond required by law)
- Shall have all powers granted to executors under the laws of **[STATE]**, including the power to sell, lease, or distribute property; to settle claims; and to distribute the estate in cash or in kind
- Shall be entitled to reasonable compensation and reimbursement of expenses

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ARTICLE VI — PERSONAL PROPERTY MEMORANDUM (OPTIONAL)

I may leave a separate written list, signed and dated by me, directing the distribution of specific items of tangible personal property (jewelry, furniture, keepsakes, etc.). My Executor shall honor that list to the extent permitted by the laws of **[STATE]**.

(This is a nice option — lets mom update specific item gifts without rewriting the will. Many states allow this.)

ARTICLE VII — GENERAL PROVISIONS

1. If any provision of this Will is invalid, the remaining provisions shall remain in full force and effect.
2. Pronouns shall be read in whichever gender or number the context requires.
3. This Will shall be governed by the laws of the State of **[STATE]**.

ARTICLE VIII — NO-CONTEST CLAUSE

If any beneficiary contests this Will or any of its provisions, that beneficiary shall forfeit their entire share, which shall be distributed as though that beneficiary had predeceased me.

SIGNATURE

IN WITNESS WHEREOF, I sign this Will, consisting of **[___]** pages including this signature page, on this ___ day of _____, 20**___**, and I declare it to be my Last Will and Testament.

_____ Signature of **[MOM'S FULL LEGAL NAME]** (Testator)

WITNESSES

The Testator signed this Will in our presence, declaring it to be her Last Will and Testament. We each sign below as witnesses in the presence of the Testator and in the presence of each other. To the best of our knowledge, the Testator is of sound mind, is 18 years of age or older, and is signing voluntarily.

⚠ **Witnesses must NOT be beneficiaries of this Will — so not the kids, not grandchildren, not anyone inheriting anything.**

Witness 1:

Signature: _____ Printed Name: _____
Address: _____ Date: _____

Witness 2:

Signature: _____ Printed Name: _____
Address: _____ Date: _____

SELF-PROVING AFFIDAVIT (Notarized)

This makes probate WAY easier later — worth including.

STATE OF _____ COUNTY OF _____

Before me, the undersigned notary, on this ___ day of _____, 20**___**, personally appeared **[MOM'S FULL LEGAL NAME]** (Testator), and the two witnesses whose names appear above, all of whom, being first duly sworn, stated:

1. The Testator signed the foregoing instrument as her Last Will and Testament;
2. The Testator signed it willingly and voluntarily;
3. The Testator was of sound mind and of legal age at the time of signing;
4. Each witness signed the Will at the request of the Testator, in the Testator's presence, and in the presence of each other;
5. To the best of each witness's knowledge, the Testator was of sound mind and under no

constraint or undue influence.

_____ Signature — Testator

_____ Signature — Witness 1

_____ Signature — Witness 2

Subscribed and sworn to before me this ___ day of _____, 20**___**.

_____ Notary Public My commission expires: _____

[NOTARY SEAL]

WHAT MOM NEEDS TO FILL IN (THE SHORT LIST)

1. Her **full legal name** (as on driver's license)
2. Her **address** (street, city, county, state)
3. **Each kid's full legal name + date of birth**
4. Pick **Option A, B, or C** in Article IV (what happens if a kid dies first — Option A is the usual pick)
5. **Executor** — who runs the estate. Usually one of the kids, or whichever is more organized / willing.
6. **Alternate Executor** — backup in case the first can't serve
7. Page count on the signature page
8. Date of signing
9. **[STATE]** wherever it appears (fill in her state)

That's it. Everything else is standard language.

WHAT HAPPENS NEXT (THE SIGNING DAY)

1. Print the final filled-in version
2. Gather **2 witnesses** (neighbors, coworkers, friends — **not the kids, not anyone inheriting**)
3. Bring in a **notary** (friend if she's commissioned, or a mobile notary — google "mobile notary near [city]", they'll come to the house, usually $25–75)
4. Everyone is in the room at the same time:
    - Mom signs the Will in front of the witnesses
    - Witnesses sign in front of mom and each other
    - Everyone signs the Self-Proving Affidavit in front of the notary
    - Notary stamps and signs
5. Store the original in a safe, findable place **at home** (NOT a safety deposit box — those can get sealed at death)
6. Give copies to the executor and each kid

Disclaimer: This is a template, not legal advice. State laws vary. Having an attorney review before signing is strongly recommended and usually costs $150–$400 for a simple will like this one.